



DECISION

Complaint No. : POS/764/HYD/2025

Name and address of the complainant : Mr. Khadim Hussain Memon,
(Attorney) of Mst. Raheela, Badar-un-Nisa, & Khushbo,
R/o Flat No. 301, Block-C, H.D.A Qasimabad Hyderabad.

Name of the Agency Complained against : Regional Director,
Sindh Building Control Authority, Hyderabad.

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : **COMPLAINT AGAINST BUILDER OF BLUE-SKY PROJECT
ALLEGING DELAY IN COMPLETION OF FLATS BOOKED
BY THE COMPLAINANT**

Complaint

Mr. Khadim Hussain Memon filed a complaint dated 01.09.2025 wherein he stated that he had booked 03 flats i.e. Unit No.302, 303 and 304 at the cost, amounting to Rs.1,449,000/-, & Rs.1,349,000/- in February 2012. According to NOC issued by SBCA, the builder was bound to complete the project by 2017 but at present, only 50% of the work has been completed and the project has been abandoned by the builder. He has already paid 80% of total cost of each flat but the builder is demanding unjustified increase in the price of apartments. Being aggrieved, he solicited intervention of this Institution.

Proceedings

2. The case was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory Affidavit on Form "A", other relevant documents and by condoning the delay.
3. This office issued a notice vide letter dated 01.10.2025 to the Regional Director SBCA Hyderabad for report. In response, the Deputy Director, SBCA, Taluka Qasimabad submitted a report vide letter dated 12.11.2025 wherein he informed that the case was heard on 11.11.2025, attended by the complainant and the builder. The complainant had booked 03 flats and he had deposited Rs.1,190,000/-, Rs.954,000/- and Rs.1,153,000/- for respective flats. Due to non-completion of project, the complainant requested for refund of his paid amount and it was agreed for refund of paid amount to the complainant within 03 months.

Findings

4. The investigation of the case established maladministration against the agency on its failure to take legal action against the builder who failed to complete the project despite lapse of 08 years of time schedule of completion in 2017.

Decision

5. In view of the above and in exercise of powers vested in me under section 11 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date), I, hereby direct the Regional Director, Sindh Building Control Authority, Hyderabad to ensure implementation of decision as agreed by the parties. The compliance report should be submitted to the Regional Director Ombudsman office Hyderabad within stipulated period.

Given under my hand and seal of the office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 14th January, 2026